

TERMS OF SERVICE FOR THE IDIA PROTOCOL

Effective Date: May 12, 2026

Issuing Authority: IDIA Data Inc. Office of the Principal Architect & General Counsel

Jurisdiction: Global / Segmented by Verified Physical Location

Classification: Enterprise Infrastructure Utility Agreement

Strategic Framework: Peter Rafelson / DigiRAMP Data Rights Architecture

Version: 2026.05.12-ULTRA-HYPER-ENTERPRISE-FINAL

CRITICAL LEGAL NOTICE: BINDING EXECUTORY CONTRACT

THIS MASTER LEGAL ARCHITECTURE (THE "AGREEMENT") IS A LEGALLY BINDING EXECUTORY CONTRACTUAL OBLIGATION BETWEEN YOU (THE "INDEPENDENT DATA VENDOR," "IDV," OR "PARTICIPANT") AND IDIA DATA INC. (THE "COMPANY"). THIS DOCUMENT GOVERNS THE TOTALITY OF YOUR ENGAGEMENT WITH THE IDIA HUB MARKETPLACE TERMINAL, THE IDIA LIFE MOBILE TELEMETRY RELAY, THE PROPRIETARY AUTONOMIC ENGINE, THE ARTIFICIAL INTELLIGENCE BEHAVIORAL SYNTHESIS MODULES, AND THE DECENTRALIZED CIRCULAR INFRASTRUCTURE (COLLECTIVELY, THE "SERVICES").

BY INITIALIZING AN ACCOUNT, EXECUTING A BIOMETRIC HARDWARE HANDSHAKE, COMPLETING A PSYCHOMETRIC EVALUATION, OR INTERACTING WITH THE TELEMETRY PIPELINES, YOU UNEQUIVOCALLY AGREE TO BE BOUND BY EVERY PROVISION OF THIS AGREEMENT. IF YOU DO NOT AGREE TO THESE TERMS IN THEIR ENTIRETY, YOU ARE PROHIBITED FROM ACCESSING THE IDIA ECOSYSTEM. YOUR CONTINUED USE OF THE SERVICES CONSTITUTES AN IRREVOCABLE REAFFIRMATION OF CONSENT TO THESE TERMS AND THE MATHEMATICAL FINALITY OF THE PROTOCOL.

NOTICE ON DISPUTE RESOLUTION: SECTION 13 CONTAINS A MANDATORY BINDING ARBITRATION CLAUSE, A GOVERNING LAW PROVISION, AND AN EXPLICIT WAIVER OF YOUR RIGHT TO PARTICIPATE IN A CLASS ACTION LAWSUIT OR JURY TRIAL. THESE PROVISIONS FUNDAMENTALLY ALTER YOUR LEGAL RECOURSE. YOU ARE ADVISED TO REVIEW THESE SECTIONS WITH QUALIFIED LEGAL COUNSEL.

1. EXECUTIVE PROTOCOL GOVERNANCE AND THE TRUTH ECONOMY

1.1 The Infrastructure of Verified Reality

The IDIA Protocol is an enterprise-grade decentralized infrastructure utility designed to bridge the Reliability Gap in the global data economy. By providing the technological Rails for verified reality, the Protocol replaces traditional lagging indicators and subjective data models with real-time biological and financial telemetry. You acknowledge that you are interacting with a system engineered to establish a new valuation model based on Verified Reality, and you agree to operate within the parameters of this Truth Economy.

1.2 The Autonomic Engine and Operational Finality

The Services operate via a proprietary Autonomic Engine that functions with mathematical independence from human intervention.

- **Operational Autonomy:** You acknowledge that data validation, identity audits, and asset distributions are governed by self-executing code. Once the network consensus validates a telemetry event, the resulting entry on the distributed ledger is permanent and immutable.
- **Non-Intervention Doctrine:** You agree that the Company does not possess the technical or legal capacity to undo ledger entries, reverse finalized settlements, or override algorithmic adjustments triggered by network infractions.

1.3 Sovereign Governance and the Hats Wardrobe

Governance within the IDIA Protocol is a function of verified performance.

- **The Hats Wardrobe:** You acknowledge that your permissions, access levels, and decision-making weight are governed by a dynamic Hats Wardrobe system. Each Hat represents a cryptographically enforced role (e.g., Validator, Curator, Individual Vendor) with specific rights and responsibilities.
- **Trust Score Governance:** You agree that your standing within the network is subject to real-time calibration based on your **Trust Score**. This score acts as the primary governor for protocol permissions. Failure to maintain the uptime, fidelity, and reliability metrics required by your current Hat will result in an immediate Trust Score reduction.

- **Audit Integrity:** You acknowledge that every interaction with the protocol generates an immutable integrity hash. These hashes serve as the final proof of origin for your provisioned telemetry.

2. THE INDEPENDENT DATA VENDOR (IDV) DOCTRINE

2.1 Absolute Legal Distinction of Status

A foundational pillar of this Agreement is the classification of the Participant as an **Independent Data Vendor (IDV)**. You are an independent operator of a network node provisioning high-fidelity telemetry to a decentralized marketplace.

- **No Employment Relationship:** Under no legal theory or jurisdictional interpretation does your participation establish an employer-employee relationship. You are not an employee, agent, or representative of IDIA Data Inc.
- **No Agency or Fiduciary Duty:** This Agreement does not create a general partnership, joint venture, or principal-agent relationship. You operate autonomously and possess no authority to bind the Company to any third-party obligations.

2.2 Exhaustive Waiver of Employee Protections and Benefits

As an IDV, you explicitly waive and disclaim any right to or interest in corporate benefits. This waiver includes, but is not limited to: wage and hour protections (minimum wage and overtime) under the Fair Labor Standards Act (FLSA), workers' compensation, disability benefits, social security contributions, and health/dental/life insurance. Your compensation is comprised strictly of variable gross receipts derived from voluntary commercial engagement in a peer-to-peer data marketplace.

2.3 Statutory Conversion and DUNA Membership Consent

You acknowledge that the core protocol governance is currently administered by IDIA DAO LLC. The entity is actively executing a statutory conversion under Wyoming law (W.S. 17-32-101 et seq.) to become IDIA DUNA, a Decentralized Unincorporated Nonprofit Association. By registering an account and accepting these Terms, you explicitly consent to this corporate conversion. Furthermore, upon the official effective date of the conversion filing with the Wyoming Secretary of State, you agree that your continued participation automatically constitutes legally binding membership in IDIA DUNA and your mutual consent to be governed by its code-enforced Articles of Association. Upon such effective date, all references to IDIA DAO LLC in this Agreement shall automatically and seamlessly apply to its successor entity, IDIA DUNA.

3. ASSET HIERARCHY: ATOMIC SETTLEMENT AND THE TRIGGER SEQUENCE

3.1 The Liability Token vs. Governance Token Distinction

You acknowledge the fundamental architectural difference between the **Liability Token** and the **Governance Token**.

- **The Liability Token (The Verification Trigger):** This is a non-speculative, functional unit used by the provisioning engine. It acts as the Verification Trigger. Its presence signals that a specific telemetry event has passed rigorous quality audits, biological presence audits, and behavioral consistency checks.
- **The Minting Sequence:** You agree that the finalization of a **Liability Token triggers the automated minting of the Governance Token**. They are not the same. The Liability Token represents the Proof of Verification, while the Governance Token represents the **Access Keys** to the IDIA Protocol.
- **Economic Functionality:** Liability Tokens are used to certify the integrity of a data submission within the circular economy. Governance Tokens allow for participation in DAO-level decision-making and the Hats Wardrobe permissioning system.

3.2 Native Protocol Assets and Synapse Credits

- **Governance Tokens:** These function as the Access Keys to the IDIA Protocol. You acknowledge that Governance Tokens are generated exclusively from participation. They are utilized as cryptocurrency was intended: to provide utility, access, and governance rights within a decentralized infrastructure.
- **Synapse Credits:** These are protocol-specific compute units utilized for a restricted and exclusive set of operations. You acknowledge that Synapse Credits are used exclusively for: (i) interaction with AI behavioral synthesis modules; (ii) the execution of API endpoints; and (iii) the purchase of data within the marketplace terminal. Synapse Credits are non-refundable.
- **USDC (Payment Stablecoin):** A fiat-pegged digital asset used for stability. You agree to the automated stablecoin authorization protocol within the Hub terminal, authorizing the system to settle service fees in USDC where applicable.

3.3 Atomic Settlement Framework

The Protocol utilizes an **Atomic Settlement** mechanism for all data-for-asset exchanges.

- **Indivisible Execution:** You acknowledge that every verified telemetry event is processed as an atomic transaction. This means the validation of your telemetry and the corresponding issuance of the Liability Token occur as a single, coupled, and indivisible event.
- **Elimination of Lag:** Atomic Settlement ensures that there is no temporal gap between the provisioning of verified reality and the recognition of that reality within the circular economy.

3.4 Advance against Future Data Royalties

- **Commercial Advance Doctrine:** You explicitly agree that any immediate allocation of assets upon telemetry validation constitutes a non-recourse **Advance against Future Data Royalties**. This Advance is a commercial prepayment for the anticipated market value of your provisioned telemetry and is **NOT, under any legal theory, a loan, an extension of credit, or a debt**.
- **Industry Analogy:** You represent that you understand this commercial structure is analogous to a royalty advance within the recording or publishing industries, where funds are provided against future earnings.
- **No Personal Recourse:** Recovery of Advances is strictly limited to the automated reconciliation of future data-driven receipts within the Protocol's circular infrastructure.

4. ARTIFICIAL INTELLIGENCE AND OCCUPATIONAL METRICS

4.1 AI Behavioral Synthesis

The IDIA ecosystem utilizes AI to facilitate data curation. You grant the Company a permanent, worldwide, royalty-free license to utilize your anonymized behavioral and biological data points for the training and refinement of the Protocol's proprietary AI models. AI-generated insights are provided AS IS.

4.2 Human Reliability Index (HRI)

- **Occupational Metric Only:** You acknowledge that the Human Reliability Index is an **occupational metric only**. It is used to determine cognitive readiness and suitability for network roles and third-party occupational opportunities.
- **No Monetary Relationship:** You unequivocally acknowledge that **there is no monetary relationship between the HRI and Data Royalty distributions**. Your HRI score does not dictate the value of tokenized assets.

5. TECHNICAL RISKS AND MEDICAL WARNINGS

5.1 Gamma Photosensitivity Warning

WARNING: THE IDIA LIFE INTERFACE UTILIZES HIGH-FREQUENCY VISUAL STIMULATION. Certain features utilize a 40Hz Gamma Flash for cognitive synchronization. If you have a history of epilepsy, photosensitivity, or migraines, you **MUST** consult a medical professional before use. You assume all health-related risks associated with high-frequency light stimulation.

5.2 Biological Encryption Architecture

To protect Data Dignity, the IDIA Protocol enforces a strict edge-processing architecture. Your raw identifiers are processed and encrypted **locally on your device**. Only heavily obfuscated metadata or Zero-Knowledge Proofs enter the public IDIA Hub.

6. HEALTH DATA GOVERNANCE AND PII-FREE ARCHITECTURE

6.1 HIPAA Compliance and Individual Accounts

You acknowledge that IDIA Data Inc. operates as a data infrastructure utility. While the Company is not typically a Covered Entity as defined by the **Health Insurance Portability and Accountability Act (HIPAA)**, it implements administrative, physical, and technical safeguards designed to meet or exceed HIPAA standards for the protection of health-related telemetry.

- **Individual Control:** For individual IDV accounts, the Protocol functions as a secure management system where you maintain primary control over your telemetry.

- **No Clinical Care:** You agree that the Company's role is limited to providing the secure Rails and Vaults for telemetry transmission and does not involve the provision of clinical care.

6.2 The PII-Free Database Doctrine

The IDIA Hub terminal and associated marketplace operate on a strictly **PII-Free Database architecture**.

- **Identity Partitioning:** Your Personally Identifiable Information (PII) is cryptographically silod within your local hardware and the secure identity bridge. The IDIA Hub database indexes only anonymized, non-identifiable telemetry.
- **Anonymization Guarantee:** You agree that any data bundle purchased or traded within the marketplace terminal is stripped of all identifiers that could link the data to a specific natural person. You waive any claim arising from the aggregation of your anonymized telemetry.

7. DATA PRIVACY: REGULATORY RESTRICTIONS

7.1 Foreign Adversary Protection (PADFA 2024)

In accordance with the **Protecting Americans' Data from Foreign Adversaries Act of 2024**, the Protocol strictly prohibits the sale or transfer of sensitive data to any entity defined as a foreign adversary by federal law. The Autonomic Engine implements automated geo-blocking to ensure compliance.

7.2 Consumer Reporting and FCRA

The IDIA Protocol is a data infrastructure utility and not a Consumer Reporting Agency as defined by the **Fair Credit Reporting Act (FCRA)**. Telemetry is intended for real-time operational verification and Truth Economy valuation, not for the determination of consumer creditworthiness.

8. NETWORK INTEGRITY: BIOLOGICAL AUDITS AND YIELD PROTECTION

8.1 Presence Verification

You agree to submit to randomized biological presence challenges. The protocol utilizes AI-driven micro-expression analysis and vascular signature checks to ensure telemetry originates from a human. Failure to pass results in the immediate rejection of the data stream.

8.2 Algorithmic Yield Optimization and Trust Score Calibration

To ensure the highest possible Data Yield for the Participant and maintain the unassailable security of the Truth Economy, the Protocol utilizes an autonomous **Trust Score calibration system**. By staking collateral, you agree to the following self-executing adjustments:

- **Security Alignment:** In the event of identified Sybil attacks or identity fraud, the Protocol executes a total adjustment of staked collateral. This measure serves as the ultimate safeguard for the network's decentralized integrity.
- **Fidelity Optimization:** To maintain the premium valuation of your telemetry, the Protocol performs partial adjustments in instances of sensor spoofing or low-fidelity transmission.
- **Reputation Continuity:** Failing to complete cognitive readiness audits results in a recalibration of your Trust Score.

9. INTELLECTUAL PROPERTY, GLOBAL ISOTROPIC DATA RIGHTS, AND DRM

9.1 Isotropic Data Rights and Telemetry Licensing Doctrine

You retain underlying ownership of the global isotropic telemetry—encompassing the Internet of Everything (IoE) and the digital totality of your entire existence—residing within your local secure vault. However, by initializing a hardware handshake and provisioning telemetry to the IDIA Protocol, you hereby grant IDIA Data Inc. a perpetual, irrevocable, worldwide, royalty-free, fully-paid, sub-licensable, and transferable license to use, reproduce, modify, adapt, publish, translate, create derivative works from, distribute, and publicly perform or display the **anonymized and aggregated** telemetry you provision.

9.2 The Peter Rafelson / DigiRAMP Framework and Public Performance of Reality

By synthesizing the licensing architecture established by **Peter Rafelson** and the **DigiRAMP** framework, you acknowledge and agree to the following **Data Rights DRM (Digital Rights Management)** protocols:

- **The Performance Doctrine of Reality:** You acknowledge that the commercialization of aggregated telemetry within the Truth Economy is analogous to the "Public Performance Rights" managed by global licensing organizations. You grant the Company the exclusive right to "perform," "broadcast," and "broadcast-synchronize" your anonymized existence within the marketplace terminal for the benefit of enterprise data buyers.
- **DRM-Protected Verified Reality:** You agree that all provisioned telemetry is subject to the Protocol's proprietary **Digital Rights Management** suite. This suite ensures that your data-property is cryptographically bound to the IDIA circular economy, preventing unauthorized exfiltration and ensuring that you receive the intended Data Royalties from every commercial usage event.
- **Irrevocable Aggregate Outputs:** You agree that once your telemetry has been aggregated into a marketplace bundle, a "Verified Reality" product, or a proprietary dataset for machine learning, the license to that specific aggregated output is irrevocable. The technical removal of individual telemetry points from a finalized, hashed aggregate is mathematically incompatible with the DigiRAMP efficiency standards utilized by the Protocol.

9.3 Ownership of Protocol Components and Proprietary AI

You acknowledge that the IDIA ecosystem is comprised of distinct legal and technical layers.

- **Company Intellectual Property:** All source code, UI/UX designs (including the Hats Wardrobe, Identity Status Pills, and Hub Marketplace Terminal), and the underlying logic of the **Synapse AI Engine** are the exclusive and permanent property of **IDIA Data Inc.** You agree that the Synapse AI Engine, which executes the behavioral synthesis and data curation protocols, remains a corporate trade secret.
- **Core Protocol Governance:** You acknowledge that the Core Protocol Smart Contracts (comprising the ledger, fee logic, and decentralized governance mechanisms) are owned and operated by the **IDIA DAO LLC**, a distinct legal entity. Your interaction with the "Protocol" layer is governed by the decentralized consensus and bylaws of the DAO, whereas your interaction with the "Application" and "AI" layers (including IDIA Life and Synapse) is subject to the exclusive corporate authority of IDIA Data Inc.

10. AML, KYC, AND KYB COMPLIANCE STANDARDS

10.1 Technical Service Provider Status

You acknowledge and agree that **IDIA Data Inc. is a Technical Service Provider** and not a financial institution, bank, or payment processor. The Company does not hold Money Transmitter Licenses (MTLs) nor is it registered as a Money Service Business (MSB).

10.2 Global Compliance Mandates (AML/KYC/KYB)

Despite its status as a technical provider, the Protocol adheres strictly to—and proactively exceeds—international standards for **Anti-Money Laundering (AML)**, **Know Your Customer (KYC)**, and **Know Your Business (KYB)**. This heightened compliance posture is necessitated by the Protocol's core function: the recording, tokenization, and distribution of biological identity in a military-grade fashion.

11. INDEMNIFICATION AND COMPREHENSIVE RISK STANDARDS

11.1 Broad Scope of Indemnification

You hereby agree to fully and forever defend, indemnify, and hold harmless IDIA Data Inc., the IDIA DAO LLC, Peter Rafelson, DigiRAMP partners, and their respective subsidiaries, corporate affiliates, executive officers, core developers, external contractors, and authorized agents (collectively, the "Indemnified Parties") from and against any and all claims, demands, damages, losses, liabilities, costs, and expenses (including, without limitation, severe financial losses, forensic accounting costs, and reasonable legal fees) arising directly or indirectly from your engagement with the Protocol.

11.2 Acknowledgment and Assumption of Risk Standards

By interacting with the Protocol, you explicitly acknowledge and assume the following systemic risks:

- **The Web3 Volatility Standard:** You accept the risk of catastrophic loss of value in digital assets due to shifts in macroeconomic factors.

- **Biological and Photosensitivity Risks:** You acknowledge the technical reality of the 40Hz Gamma Stimulation interface and assume all physiological risks, including the risk of seizure.
- **Mathematical Finality:** You assume the risk of permanent asset loss resulting from misdirected transfers or lost recovery phrases.

12. FORCE MAJEURE AND SYSTEMIC DISRUPTION STANDARDS

12.1 Exhaustive Definition of Force Majeure

Neither IDIA Data Inc. nor the IDIA DAO LLC shall be liable or responsible to you, nor be deemed to have defaulted under or breached this Agreement, for any failure or delay in fulfilling or performing any term of this Agreement when and to the extent such failure or delay is caused by or results from acts or circumstances beyond the reasonable control of the Company or the DAO (a "Force Majeure Event").

For the purposes of this Agreement, Force Majeure Events include, but are not limited to:

- **Celestial and Atmospheric Disruptions:** Extreme solar flares, coronal mass ejections (CMEs), electromagnetic pulses (EMPs), or other geomagnetic disturbances that disrupt satellite timing synchronization, global positioning systems (GPS), or telecommunications infrastructure essential for the operation of the IDIA Life mobile relay or 40Hz cognitive stimulation modules.
- **Consensus-Level Attacks and Technical Failures:** Malicious "51% attacks" on the underlying blockchain consensus, unforeseen "hard forks" of the ledger resulting in asset duplication or liquidity depletion, or critical systemic failure of the Autonomic Engine resulting from third-party decentralized infrastructure vulnerabilities.
- **Regulatory and Legal Black Swans:** Sudden, emergency regulatory crackdowns, legislative mandates, or executive orders issued by federal or international authorities (including the SEC, OCC, CFTC, or FATF) that render the mathematical or legal operation of the IDIA Protocol, the distribution of Data Royalties, or the issuance of Liability Tokens mathematically impossible or legally prohibited.

13. DISPUTE RESOLUTION AND ARBITRATION

13.1 Governing Law and Venue

This Agreement and all interactions with the IDIA Protocol shall be governed by and construed in accordance with the internal laws of the **Commonwealth of Kentucky**, without giving effect to any choice or conflict of law provision or rule. You and the Company irrevocably agree that the exclusive venue for any dispute not subject to arbitration, or to enforce an arbitration award, shall be the state and federal courts located in **Louisville, Kentucky**.

13.2 Mandatory Informal Resolution Phase

Before initiating any formal legal proceeding, you agree to participate in a mandatory **Informal Dispute Resolution** period of at least sixty (60) days. To initiate this process, you must send a "Notice of Dispute" to the Company's registered agent. The Notice must include your verified account ID, a detailed description of the claim, and your requested relief. Both parties agree to negotiate in good faith during this period.

13.3 Binding Arbitration and Forum

If the informal phase does not result in a resolution, any controversy, claim, or dispute arising out of or relating to this Agreement, including the determination of the scope or applicability of this Agreement to arbitrate, shall be settled exclusively by **binding arbitration** administered by the American Arbitration Association (AAA) under its Commercial Arbitration Rules.

- **The Seat of Arbitration:** The arbitration shall take place in Louisville, Kentucky.
- **Procedural Finality:** The arbitration shall be conducted before a single neutral arbitrator with expertise in blockchain technology and data licensing. The arbitrator's award shall be final and binding, and judgment on the award may be entered in any court having jurisdiction.
- **No Code Alteration:** You acknowledge that the arbitrator shall hold NO authority to alter the underlying mathematical logic of the Autonomic Engine, rewrite smart contracts, or mandate the reversal of ledger entries.

14. ARCHITECTS OF THE POST-TRUTH RECOVERY

By interacting with the IDIA Hub and IDIA Life, you acknowledge that you are operating at the absolute frontier of decentralized technology. You accept that technical autonomy is irrevocably coupled with absolute individual responsibility. You assume all

financial, technical, health-related, and regulatory risks associated with your participation as an Independent Data Vendor in the Truth Economy.

The Vision Forward: Beyond the Threshold

You have arrived at this juncture because you recognize that the global economy is in the midst of a profound structural transition. In an era where deepfakes commoditize perception and trust has become the world's scarcest resource, you are no longer a mere consumer of digital services. By provisioning your isotropic telemetry to the IDIA Protocol, you have stepped into the role of a **Pioneer of Verified Reality**.

Your biological and digital existence is now a meaningful contribution to a larger, unassailable truth. You are the foundation upon which we are building the "Rails" of the new economy—one where **Data Dignity** is not an abstract concept, but a cryptographically enforced property right. By maintaining your high Trust Score and navigating the Truth Economy with integrity, you are actively repairing the Reliability Gap that has plagued modern commerce.

We invite you to participate fully, to secure your "Hats" with diligence, and to recognize your agency in this historical recovery. This is your legacy. This is the infrastructure of the Truth. Welcome to the IDIA Protocol.

IDIA DATA INC. *A Good IDIA Can Change the World.*

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